



OFFICE OF THE POLICE COMMISSIONER

ONE POLICE PLAZA • ROOM 1400

February 10, 2009

Memorandum for: Deputy Commissioner, Trials

Re: **Detective Loriann Perez**
Tax Registry No. 914442
Staten Island Special Victims Squad
Disciplinary Case No. 83834/08

The above named member of the service appeared before Deputy Commissioner Martin G. Karopkin on September 5, 2008 and was charged with the following:

DISCIPLINARY CASE NO. 83834/08

1. Said Detective, Loriann Perez, while assigned to Staten Island Special Victims Squad, while on sick report, on or about July 24, 2007, at a location known to this Department, in New Jersey, did leave the confines of New York City or residence counties without the approval of the Chief of Personnel.

P.G. 205-01, Page 6,

**ADDITIONAL DATA REPORTING SICK,
PERSONNEL MATTERS**

2. Said Detective, Loriann Perez, while assigned to Staten Island Special Victims Squad, while on sick report, on or about July 20, 2007, at a location known to this Department, in New Jersey, did leave the confines of New York City or residence counties without the approval of the Chief of Personnel.

P.G. 205-01, Page 6,

**ADDITIONAL DATA REPORTING SICK,
PERSONNEL MATTERS**

3. Said Detective, Loriann Perez, while assigned to Staten Island Special Victims Squad, while on sick report, on or about July 20, 2007, at a location known to this Department, in Richmond County, was wrongfully and without just cause absent from said officer's residence without permission of said officer's District Surgeon and/or the Medical Division Sick Desk Supervisor.

P.G. 205-01, Page 2, Paragraph 4

REPORTING SICK, PERSONNEL MATTERS

4. Said Detective, Loriann Perez, while assigned to Staten Island Special Victims Squad, while on sick report, on or about July 19, 2007, at a location known to this Department, in New Jersey, did leave the confines of New York City or residence counties without the approval of the Chief of Personnel.

P.G. 205-01, Page 6,

**ADDITIONAL DATA REPORTING SICK,
PERSONNEL MATTERS**

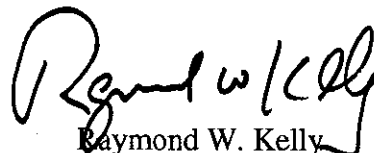
5. Said Detective, Loriann Perez, while assigned to Staten Island Special Victims Squad, while on sick report, on or about July 25, 2007, at a location known to this Department, in New Jersey, did leave the confines of New York City or residence counties without the approval of the Chief of Personnel.

P.G. 205-01, Page 6,

**ADDITIONAL DATA REPORTING SICK,
PERSONNEL MATTERS**

In a trial decision and Memorandum dated September 29, 2008, Deputy Commissioner Karopkin accepted the Respondent's PLEADING GUILTY to all Specifications, and recommended a penalty of five (5) Vacation days. Having read the Memorandum and analyzed the facts of this case, I approve the findings, but disapprove the recommended penalty.

The Respondent's claim of being unaware of Department sick leave policy, especially given her tenure and prior experiences with the Medical Division, is not worthy of belief. Her misconduct reflected a blatant disregard for Department rules. As such, the Respondent's misconduct merits a greater penalty consequence. Therefore, the Respondent will forfeit twenty (20) Vacation days in this matter.


Raymond W. Kelly
Police Commissioner



POLICE DEPARTMENT

September 29, 2008

MEMORANDUM FOR: Police Commissioner

Re: Detective Loriann Perez
Tax Registry No. 914442
Staten Island Special Victims Squad
Disciplinary Case No. 83834/08

The above-named member of the Department appeared before me on September 5, 2008, charged with the following:

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P.G. 205-01, Page 6 – ADDITIONAL DATA REPORTING SICK,
PERSONNEL MATTERS

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P.G. 205-01, Page 6 – ADDITIONAL DATA REPORTING SICK,
PERSONNEL MATTERS

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P.G. 205-01, Page 2, Paragraph 4 – REPORTING SICK, PERSONNEL MATTERS

4. Said Detective, Loriann Perez, while assigned to Staten Island Victims Squad, while on sick report, on or about July 19, 2007, at a location known to this Department,

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P.G. 205-01, Page 6 – ADDITIONAL DATA REPORTING SICK,
PERSONNEL MATTERS

5. Said Detective, Loriann Perez, while assigned to Staten Island Victims Squad, while on sick report, on or about July 25, 2007, at a location known to this Department, in New Jersey, did leave the confines of New York City or residence counties without the approval of the Chief of Personnel.

P.G. 205-01, Page 6 – ADDITIONAL DATA REPORTING SICK,
PERSONNEL MATTERS

The Department was represented by Mark Berger, Esq., Department Advocate's Office, and the Respondent was represented by James Moschella, Esq.

The Respondent, through her counsel, entered a plea of Guilty to the subject charges. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent, having pled Guilty, is found Guilty as charged.

SUMMARY OF EVIDENCE PRESENTED IN MITIGATION

The Respondent testified that she has been assigned to the Staten Island Special Victims Unit since 2005 where she investigates child abuse cases and sex abuse cases against children. Prior to that, from 1998 to 2005 she worked at Staten Island Narcotics and before that she was in Brooklyn North Narcotics. She has been a member of the Department for 15 years and has been working on Staten Island for about ten years. She currently lives in New Springville on Staten Island.

She has never been the subject of charges and specifications before this case nor the subject of any Departmental discipline.

On July 18, 2007 she sustained an injury; she sprained her ankle while searching for the perpetrator in a rape case. She went to the hospital and went on line of duty sick leave. She saw the District Surgeon on July 19 or 20, 2007. She was told to come back in a week and received a pass to go out from 4 p.m. to 8 p.m. on a daily basis. She understood that while she was out sick she was otherwise confined to her residence but that the pass allowed her to go out and take care of things that she needed to attend to. She was not given any particular restrictions during her hours out on the pass.

The Respondent testified that in July of 2007 she was not aware of the provision of the Patrol Guide that says that while you are on sick report you cannot leave New York City or the residence counties. She acknowledged that on July 19, July 20, July 24 and July 25 of 2007 she did travel to New Jersey during her pass hours.

The Respondent indicated that she went to New Jersey to go shopping and that she does her shopping in New Jersey, which is 12 minutes over the bridge. She testified that she worked at Narcotics in Staten Island for a long time and had run into a lot of subjects and people that she arrested and that to avoid confrontation she does all of her shopping in New Jersey.

On the days in question she said that she visited Wal-Mart, BJ's, and Costco and that there is no BJ's or Wal-Mart on Staten Island.

She first learned of an investigation months later when she was notified to appear at the Chief of Detectives Investigations Unit in November 2007. The allegation at that time was that while she was assigned to Employee Relations she supposedly had gone on

a cruise. Another allegation was that she was taking days off without submitting "28s" (Leave of Absence Reports). Eventually, as to those charges, she was exonerated.

During that investigation she was asked to submit certain documentation, credit card bills and her E-ZPass records for July 2007, January 2007 and November 2006.

At a later point she was called in and asked questions about certain charges on her credit card statement, specifically about July 19, 24 and 25, 2007. She was asked if she went to New Jersey on those days, which she acknowledged she did. She also advised the investigators that she was unaware of the provision that she was not permitted to go to New Jersey. She agreed that she is well aware of that rule now.

On cross-examination, the Respondent was asked about the cruise and responded: "A cruise that I supposedly went on in December 2006." She acknowledged that she was also asked about being out of residence past pass hours and that "at that point" she had denied it. She recalled that she was in New Jersey on July 20, 2007 but did not believe she was shopping that day. She said she was visiting her sister. When asked if it was for personal reasons she responded, "Yes."

She again acknowledged that the first time she was interviewed, she denied being out past pass hours (but apparently admitted it in her next interview). When asked what changed between November 2007 when she said she wasn't out past pass hours and January (presumably 2008) when she admitted it, the Respondent answered that she did not recall (apparently meaning that she did not recall during the first interview). She indicated that a lot of things jarred her memory between the interviews. She said that she went over all of her credit card bills and saw what dates she went shopping and the things

she was doing that week, and that is how she remembered why she was going to New Jersey so much that week.

When asked if she saw her E-ZPass records she said that she did not see those records. Asked if the credit card bills helped her remember why she was out, the Respondent indicated that they helped her remember why she was in New Jersey.

When asked: "On July 20th you didn't call the Sick Desk and say, 'Guys, I am running a little late. Can you extend my sick pass?'" the Respondent replied, "No."

When asked why, she replied: "I was probably stuck in traffic. I don't remember exactly. The only reason why I would be late is because if there was traffic or some type of accident when you stuck in bad traffic."

The Assistant Department Advocate then stated: "Which would be a good excuse actually." To which the Respondent stated: "Yes, that would be the only reason why I would be late."

When asked: "Why not call the Sick Desk and explain that to them?" the Respondent answered that she didn't make it a regular practice to go sick and didn't know how to handle the situation. She was again asked about her lack of knowledge of the rule that prohibited her from going out of state while on sick leave without permission and she said that she learned of it when it was explained to her by the Chief of Detectives and the Investigations Unit.

She did not recall being informed of it in the Academy and noted that that was 15 years ago.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined, see *Matter of Pell v. Board of Education*, 34 N.Y.2d 222 (1974).

The Respondent was appointed to the Department on August 30, 1993. Information from her personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

The Respondent has pleaded guilty to the specifications in this case. The sole issue is penalty. The Department has recommended a penalty of 20 days. The Respondent asserts that this is too great a penalty for the misconduct involved in this case.

Four of these five charges relate to the fact that she crossed a bridge into the adjoining state of New Jersey while legitimately out of her residence on a pass, nothing more. The remaining charge, Specification No. 3, involves the fact that on one of these occasions she returned home beyond the period allowed by the pass.

The first issue in determining penalty is proportionality, the notion that penalty reflects in some measure the magnitude of the misconduct. In this case the Respondent left her home during the period of time when she was permitted to do so. She engaged in activities in which she was permitted to engage. She took a short trip from her home on Staten Island. If she had taken a longer trip in the opposite direction there would be no charges. Going to New Jersey while on sick leave was certainly, technically, a violation, but it was not one, under the circumstance of this case, which had any real adverse effect on the Department.

Specification No. 3 results from the fact that on one of these occasions, when she visited her sister, she overstayed the time permitted on the pass by one hour and twenty minutes. That is a more significant violation as it goes to the purpose of the Department's sick leave and sick pass policies. In considering proportionality in terms of this offense some of the factors to be considered are: the frequency of occurrence – it happened once; the amount of time involved – one hour and twenty minutes; and the explanation offered – that she was caught in traffic on one of the heavily traveled bridges between New Jersey and Staten Island.

The first question that must be asked is: on its face, do these violations justify a penalty involving the loss of twenty vacation days? It seems plain that twenty days is not proportionate to the misconduct.

An even stronger argument that this penalty recommendation is too severe comes from the three cases cited by the Department in support of their penalty request. In each of these cases, a member of this Department was found guilty of violating the same section of the Patrol Guide, 205-01, and the penalty imposed was twenty days. The problem with this analysis is that the mere section of the Patrol Guide violated does not necessarily tell us anything about the seriousness of the case. Some Patrol Guide sections, this one included, cover a myriad of events that cannot be understood by looking only at the named charge.

This becomes obvious when one examines the cases in more detail. The first case cited by the Department, Disciplinary Case No. 79501/03, involved a member who, while on sick leave, left the state for three days to attend a convention. This constituted a contumacious and intentional flouting of the Department's sick leave policy. A member

simply cannot do whatever they want while on sick leave and is, in fact, nothing like the conduct in this case.

The second matter cited by the Department is Disciplinary Case No. 80186/04 in which a member, while on sick leave, spent two days in a motel in the Adirondack region of New York. She also apparently failed to report to the Medical Division as directed during that time. Again, this is quite different than the situation in this case.

The third case cited by the Department, Disciplinary Case No. 81931/06, highlights another factor that should be considered in assessing penalty—work history. This is of particular value in determining an appropriate penalty for an incident involving alleged sick leave abuse, where it can easily be determined if a member has a questionable sick leave record.

The Respondent in that case had been the subject of a long-term investigation into alleged sick leave abuse involving exaggerated claims regarding the level of her disability. According to the Disciplinary Cover Sheet prepared by the Department Advocate in that case, her medical history indicated that:

Respondent has taken sick leave a total of 79 times and been designated as chronic on 31 occasions over her seventeen year career. Respondent has been designated Chronic "A" four times in 1991, two times in 1992, two times in 1995, one time in 1996, two times in 1997, and one time in 2005. Respondent has been designated Chronic "B" one time in 1997, four time in 1998, five times in 2005 and nine times in 2006.

There is simply no comparison between that Respondent and the Respondent in this case. The Respondent in the case now before this Court has very few sick events, slightly more than one a year according to the Advocate, giving some credence to her

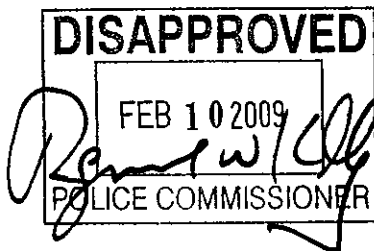
claim that she did not know she could not go to New Jersey while on a pass because she is not out sick a lot. She has never been designated as chronic sick.

If twenty days was the appropriate penalty in the cases cited by the Department then it is clear that a much lesser penalty is appropriate in this case.

Additionally, looking at this Respondent's work history, she has no prior disciplinary matters and a very good work record. She was apparently the victim of a false and possibly malicious allegation. The investigation of that false allegation caused the Department to request her credit card records. When she turned them over, the Department learned that she had been shopping in New Jersey apparently leading to a review of her E-ZPass records and the discovery that on one date she returned home late. At the time of these events she was out on line of duty sick leave, having been hurt while trying to apprehend a rapist.

The Court is mindful that this Department has a significant responsibility to fully and firmly enforce its sick leave policy and to root out abuse. It is also mindful of the fact that fairness, proportionality and balance are likewise important. Considering all the factors discussed above, this Court recommends that a penalty of the loss of five vacation days be imposed.

Respectfully submitted,




Martin G. Karopkin
Deputy Commissioner-Trials